



IT IS JUSTIFIABLE, BUT NOT FOR DETESTABLE CURIOSITY

THE “VIVISECTION ACT” (1876)

IN CONTEXT

FOCUS

Animal welfare law

BEFORE

1849 The Cruelty to Animals Act is passed in Britain.

1871 The British Association for the Advancement of Science sets out a moral code for all those experimenting on animals in the UK.

1875 In London, Frances Power Cobbe founds what is now called the National Anti-Vivisection Society.

AFTER

1966 The Animal Welfare Act sets a minimum standard in US federal law of regulating animal welfare.

1986 The Animals (Scientific Procedures) Act regulates the use of animals for scientific research in Britain.

2013 The European Union bans the testing of cosmetics on animals.

During a British Medical Association meeting in Norwich in 1874, French physiologist Eugene Magnan injected a dog with absinthe to show the effects of alcohol, and the dog died. A prosecution under the Cruelty to Animals Act by the Royal Society for the Prevention of Cruelty to Animals (RSPCA) failed (Magnan had returned to France), but the case gained public support and proved that existing legislation on vivisection (experiments on live animals) was inadequate.

Scientists and animal cruelty campaigners supported tighter legislation for opposing reasons: scientists sought protection from prosecution, whereas campaigners wanted to stop cruelty to animals.

Regulating experimentation

In 1875, a British Royal Commission recommended amending the 1849 Cruelty to Animals Act to cover vivisection. When the new bill went before Parliament, lobbying by the medical establishment resulted in a watered-down version (commonly

known as the “Vivisection Act”) being passed in 1876. Anyone carrying out vivisection now would need a license, and experiments all had to be medically justified and could no longer be done in public.

The Act balanced research needs and animal safety, but both sides felt it did not go far enough. It was a landmark piece of legislation, however, as the first in the world to regulate the use and treatment of live animals in medical research. ■



Whether the practice be useful or useless, we ask you to reflect whether it be morally lawful.

Frances Power Cobbe

**Irish animal rights activist
(1822–1904)**



See also: The Cruelty to Animals Act 146–147 ■ The Endangered Species Act 264–265 ■ The World Network of Biosphere Reserves 270–271 ■ Euthanasia 296–297